

hearing date. It does not extend the time period under the Code of Civil Procedure. Such an interpretation would conflict with the Code of Civil Procedure. “A trial court is without authority to adopt local rules or procedures that conflict with statutes or with rules of court adopted by the Judicial Council, or that are inconsistent with the Constitution or case law.” (*Elkins v. Superior Court* (2007) 41 Cal.4th 1337, 1351.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502950	JAFFE vs PRESTIGE AUTOSPORTS GROUP INC	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION (SET ONE) AND MONETARY SANCTIONS

Tentative Ruling:

Plaintiff’s Motion to Compel is denied for failure to comply with the court’s orders on 3/24/26 and 5/19/26.

Plaintiff filed the instant motion to compel further responses to his first set of request for admission on February 26, 2026. The motion was initially set for hearing to be held on March 24, 2026. Prior to the hearing, the Court ordered the hearing to be continued to May 19, 2026, for reason Plaintiff’s declaration failed to describe any effort made to engage in a reasonable and good faith attempt to meet and confer. (See Minute Order dated March 24, 2026.)

Prior to the continued hearing, the Court once again ordered the hearing to be continued to June 18, 2026, ordering Defendants to file any opposition by June 04, 2026, and Plaintiff to file a rely on or before June 09, 2026. (See Minute Order dated May 19, 2026.) It appears the continuance was ordered on the basis of the declaration filed by Defendant, noting Plaintiff’s failure to serve notice of hearing on motion to compel.

To date, Plaintiff has not complied with the Court’s February 26, 2026 order to submit supplemental declaration regarding the good faith effort to meet and confer. Moreover, Defendant failed to file an opposition by June 04, 2026. Instead, on June 09, 2026, it only filed a separate statement in opposition to the motion.

There are procedural requirements which must be met for an order compelling the further responses, including a requirement for good faith meet and confer (Code Civ. Proc., §§ 2033.290(b), 2016.040).